

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506303	WELLS FARGO BANK, N.A. VS ABTIN, AN INDIVIDUAL	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF WELLS FARGO BANK, N.A. BY WELLS FARGO BANK, N.A.

Tentative Ruling: Plaintiff Wells Fargo Bank N.A.'s unopposed motion for summary judgment is GRANTED.

Plaintiff sued defendant Denise Abtin for breach of contract (written) and breach of contract (implied in fact). To succeed on these claims, plaintiff must show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Here, the evidence provided in support of plaintiff's motion shows: (1) plaintiff entered into a credit card agreement with defendant; (2) it performed all duties under the agreement, including issuing a card to defendant and providing monthly statements; (3) defendant breached the agreement by failing to make all required payments on her account; and (4) that breach resulted in damages in the amount of \$30,814.21. Plaintiff is accordingly entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

All future hearing dates are VACATED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507580	TD BANK USA N.A. VS VILLASENOR	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF TD BANK USA N.A. BY TD BANK USA N.A.

Tentative Ruling: Plaintiff TD Bank USA, N.A.'s unopposed motion for judgment on the pleadings is GRANTED.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges a cause of action for breach of contract (written). This cause of action requires plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Maria M. Villaseñor's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a card to defendant and providing monthly statements; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$1,160.30. Defendant admits as much in her answer. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.